



CERTIFICATE OF LIABILITY INSURANCE

DATE (MM/DD/YYYY)

8/13/2025

THIS CERTIFICATE IS ISSUED AS A MATTER OF INFORMATION ONLY AND CONFERS NO RIGHTS UPON THE CERTIFICATE HOLDER. THIS CERTIFICATE DOES NOT AFFIRMATIVELY OR NEGATIVELY AMEND, EXTEND OR ALTER THE COVERAGE AFFORDED BY THE POLICIES BELOW. THIS CERTIFICATE OF INSURANCE DOES NOT CONSTITUTE A CONTRACT BETWEEN THE ISSUING INSURER(S), AUTHORIZED REPRESENTATIVE OR PRODUCER, AND THE CERTIFICATE HOLDER.

IMPORTANT: If the certificate holder is an **ADDITIONAL INSURED**, the policy(ies) must have **ADDITIONAL INSURED** provisions or be endorsed. If **SUBROGATION** IS **WAIVED**, subject to the terms and conditions of the policy, certain policies may require an endorsement. A statement on this certificate does not confer rights to the certificate holder in lieu of such endorsement(s).

PRODUCER Holmes Murphy & Associates 2727 Grand Prairie Parkway Waukegan IA 50263	CONTACT NAME: Velia Mancha PHONE (A/C, No, Ext): FAX (A/C, No): E-MAIL ADDRESS: vmancha@holmesmurphy.com
INSURED Gen3 CO, LLC 2880 S. Raritan Street Englewood, CO 80110	INSURER(S) AFFORDING COVERAGE INSURER A: National Union Fire Ins. Co. Pittsburgh INSURER B: Upland Specialty Insurance Company INSURER C: New Hampshire Insurance Company INSURER D: Indian Harbor Insurance Company INSURER E: Atlantic Specialty Insurance Company INSURER F:

COVERAGES**CERTIFICATE NUMBER:** 1984396319**REVISION NUMBER:**

THIS IS TO CERTIFY THAT THE POLICIES OF INSURANCE LISTED BELOW HAVE BEEN ISSUED TO THE INSURED NAMED ABOVE FOR THE POLICY PERIOD INDICATED. NOTWITHSTANDING ANY REQUIREMENT, TERM OR CONDITION OF ANY CONTRACT OR OTHER DOCUMENT WITH RESPECT TO WHICH THIS CERTIFICATE MAY BE ISSUED OR MAY PERTAIN, THE INSURANCE AFFORDED BY THE POLICIES DESCRIBED HEREIN IS SUBJECT TO ALL THE TERMS, EXCLUSIONS AND CONDITIONS OF SUCH POLICIES. LIMITS SHOWN MAY HAVE BEEN REDUCED BY PAID CLAIMS.

INSR LTR	TYPE OF INSURANCE	ADDL INSD	SUBR WVD	POLICY NUMBER	POLICY EFF (MM/DD/YYYY)	POLICY EXP (MM/DD/YYYY)	LIMITS
A	☒ COMMERCIAL GENERAL LIABILITY ☐ CLAIMS-MADE ☒ OCCUR GEN'L AGGREGATE LIMIT APPLIES PER: ☐ POLICY ☒ PRO-JECT ☒ LOC OTHER:			GL9566256	5/1/2025	5/1/2026	EACH OCCURRENCE \$2,000,000 DAMAGE TO RENTED PREMISES (Ea occurrence) \$100,000 MED EXP (Any one person) \$10,000 PERSONAL & ADV INJURY \$2,000,000 GENERAL AGGREGATE \$4,000,000 PRODUCTS - COMP/OP AGG \$4,000,000 \$
A	☒ AUTOMOBILE LIABILITY ☒ ANY AUTO ☐ OWNED AUTOS ONLY ☐ SCHEDULED AUTOS ☒ HIRED AUTOS ONLY ☒ NON-OWNED AUTOS ONLY			CA5721499	5/1/2025	5/1/2026	COMBINED SINGLE LIMIT (Ea accident) \$2,000,000 BODILY INJURY (Per person) \$ BODILY INJURY (Per accident) \$ PROPERTY DAMAGE (Per accident) \$ \$
B	☐ UMBRELLA LIAB ☒ OCCUR ☒ EXCESS LIAB ☐ CLAIMS-MADE DED RETENTION \$			USXSL0152625	5/1/2025	5/1/2026	EACH OCCURRENCE \$4,000,000 AGGREGATE \$4,000,000 \$
C	WORKERS COMPENSATION AND EMPLOYERS' LIABILITY ANY PROPRIETOR/PARTNER/EXECUTIVE OFFICER/MEMBER EXCLUDED? (Mandatory in NH) If yes, describe under DESCRIPTION OF OPERATIONS below	Y/N N	N/A	WC015853378	5/1/2025	5/1/2026	☒ PER STATUTE ☐ OTH-ER E.L. EACH ACCIDENT \$1,000,000 E.L. DISEASE - EA EMPLOYEE \$1,000,000 E.L. DISEASE - POLICY LIMIT \$1,000,000
D E E	Pollution/Professional Liab. Leased/Rented Equipment Installation Floater			PEC004708909 7100398340005 7100398340005	5/1/2025 5/1/2025 5/1/2025	5/1/2026 5/1/2026 5/1/2026	\$3Mil Each/Agg \$250,000 Limit \$1,500,000 Limit \$25,000 Deductible \$1,000 Deductible \$1,000 Deductible

DESCRIPTION OF OPERATIONS / LOCATIONS / VEHICLES (ACORD 101, Additional Remarks Schedule, may be attached if more space is required)Project: Larimer Square - Congdon Redevelopment
Project Number: 24036068

As required by written contract or written agreement, Swinerton Builders, its parent and affiliated companies, AP Larimer Square LLC, Other parties as required by Owner and/or necessitated by construction activities are included as Additional Insureds under General Liability, Automobile Liability, Umbrella Liability and Pollution Liability on a primary and non-contributory basis with respect to the above referenced, per policy terms and conditions.

As required by written contract or written agreement, a Waiver of Subrogation in favor of Swinerton Builders, its parent and affiliated companies, AP Larimer See Attached...

CERTIFICATE HOLDER**CANCELLATION**

CERTIFICATE HOLDER Swinerton Builders 6890 W. 52nd Avenue, 100 Arvada CO 80002	CANCELLATION SHOULD ANY OF THE ABOVE DESCRIBED POLICIES BE CANCELLED BEFORE THE EXPIRATION DATE THEREOF, NOTICE WILL BE DELIVERED IN ACCORDANCE WITH THE POLICY PROVISIONS. AUTHORIZED REPRESENTATIVE <i>Kari Coolidge</i>
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**ADDITIONAL REMARKS SCHEDULE**Page 1 of 1

AGENCY Holmes Murphy & Associates		NAMED INSURED Gen3 CO, LLC 2880 S. Raritan Street Englewood, CO 80110
POLICY NUMBER		
CARRIER	NAIC CODE	EFFECTIVE DATE:

ADDITIONAL REMARKS

THIS ADDITIONAL REMARKS FORM IS A SCHEDULE TO ACORD FORM,
FORM NUMBER: 25 **FORM TITLE:** CERTIFICATE OF LIABILITY INSURANCE

Square LLC, Other parties as required by Owner and/or necessitated by construction activities applies to Workers Compensation, General Liability, Automobile Liability, Umbrella Liability, Pollution Liability and Professional Liability with respects to the above referenced, per policy terms and conditions.

ENDORSEMENT

This endorsement, effective 12:01 A.M. 05/01/2025
forms a part of Policy No. 572-14-99
issued to GEN3 CONSTRUCTION
by NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA.

EARLY NOTICE OF CANCELLATION PROVIDED BY US

This endorsement modifies insurance provided under the following:

AUTO DEALERS COVERAGE FORM
COMMERCIAL GENERAL LIABILITY COVERAGE FORM
BUSINESS AUTO COVERAGE FORM
MOTOR CARRIER COVERAGE FORM

COMMON POLICY CONDITIONS, A. - Cancellation, 2. is amended to read:

2. We may cancel this policy by mailing or delivering to the first Named Insured written notice of cancellation at least:
 - a. TEN (10)* days before the effective date of cancellation if we cancel for nonpayment of premium; or
 - b. NINETY (90)* days before the effective date of cancellation if we cancel for any other reason.

*** The notice period provided shall not be less than that required by applicable state law(s).**



AUTHORIZED REPRESENTATIVE

ENDORSEMENT

This endorsement, effective 12:01 A.M. 05/01/2025
forms a part of Policy No. 572-14-99
issued to GEN3 CONSTRUCTION
by NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA.

ADDITIONAL INSURED - WHERE REQUIRED UNDER CONTRACT OR AGREEMENT

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

SCHEDULE

ADDITIONAL INSURED:

ANY PERSON OR ORGANIZATION FOR WHOM YOU ARE CONTRACTUALLY BOUND TO PROVIDE
ADDITIONAL INSURED STATUS BUT ONLY TO THE EXTENT OF SUCH PERSON'S OR
ORGANIZATION'S LIABILITY ARISING OUT OF THE USE OF A COVERED "AUTO".

**I. SECTION II - COVERED AUTOS LIABILITY COVERAGE, A. Coverage, 1. - Who Is Insured, is
amended to add:**

- d. Any person or organization, shown in the schedule above, to whom you become obligated to include as an additional insured under this policy, as a result of any contract or agreement you enter into which requires you to furnish insurance to that person or organization of the type provided by this policy, but only with respect to liability arising out of use of a covered "auto". However, the insurance provided will not exceed the lesser of:

- (1) The coverage and/or limits of this policy, or
- (2) The coverage and/or limits required by said contract or agreement.



AUTHORIZED REPRESENTATIVE

ENDORSEMENT

This endorsement, effective 12:01 A.M. 05/01/2025
forms a part of Policy No. 572-14-99
issued to GEN3 CONSTRUCTION
by NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA.

INSURANCE PRIMARY AS TO CERTAIN ADDITIONAL INSURED

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

Section IV - Business Auto Conditions, B., General Conditions, 5., Other Insurance, c., is amended by the addition of the following sentence:

The insurance afforded under this policy to an additional insured will apply as primary insurance for such additional insured where so required under an agreement executed prior to the date of accident. We will not ask any insurer that has issued other insurance to such additional insured to contribute to the settlement of loss arising out of such accident.

All other terms and conditions remain unchanged.



Authorized Representative or
Countersignature (in States Where
Applicable)

ENDORSEMENT

This endorsement, effective 12:01 A.M. 05/01/2025
forms a part of Policy No. 572-14-99
issued to GEN3 CONSTRUCTION
by NATIONAL UNION FIRE INSURANCE COMPANY OF PITTSBURGH, PA.

WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US

This endorsement modifies insurance provided under the following:

BUSINESS AUTO COVERAGE FORM

Section IV - Business Auto Conditions, A. - Loss Conditions, 5. - Transfer of Rights of Recovery Against Others to Us, is amended to add:

However, we will waive any right of recover we have against any person or organization with whom you have entered into a contract or agreement because of payments we make under this Coverage Form arising out of an "accident" or "loss" if:

- (1) The "accident" or "loss" is due to operations undertaken in accordance with the contract existing between you and such person or organization; and
- (2) The contract or agreement was entered into prior to any "accident" or "loss".

No waiver of the right of recovery will directly or indirectly apply to your employees or employees of the person or organization, and we reserve our rights or lien to be reimbursed from any recovery funds obtained by any injured employee.



AUTHORIZED REPRESENTATIVE

POLICY NUMBER: 956-62-56

COMMERCIAL GENERAL LIABILITY
CG 02 24 10 93

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

EARLIER NOTICE OF CANCELLATION PROVIDED BY US

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

SCHEDULE

Number of Days' Notice 90

(If no entry appears above, information required to complete this Schedule will be shown in the Declarations as applicable to this endorsement.)

For any statutorily permitted reason other than nonpayment of premium, the number of days required for notice of cancellation, as provided in paragraph 2. of either the CANCELLATION Common Policy Condition or as amended by an applicable state cancellation endorsement, is increased to the number of days shown in the Schedule above.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

**ADDITIONAL INSURED - OWNERS, LESSEES OR
CONTRACTORS - SCHEDULED PERSON OR
ORGANIZATION**

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART

SCHEDULE

Name Of Additional Insured Person(s) Or Organization(s)	Location(s) Of Covered Operations
Any person or organization whom you become obligated to include as an additional insured as a result of any contract or agreement you have entered into.	Per the written contract or written agreement
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

A. Section II – Who Is An Insured is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury", "property damage" or "personal and advertising injury" caused, in whole or in part, by:

1. Your acts or omissions; or
2. The acts or omissions of those acting on your behalf;

in the performance of your ongoing operations for the additional insured(s) at the location(s) designated above.

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

B. With respect to the insurance afforded to these additional insureds, the following additional exclusions apply:

This insurance does not apply to "bodily injury" or "property damage" occurring after:

1. All work, including materials, parts or equipment furnished in connection with such work, on the project (other than service, maintenance or repairs) to be performed by or on behalf of the additional insured(s) at the location of the covered operations has been completed; or
2. That portion of "your work" out of which the injury or damage arises has been put to its intended use by any person or organization other than another contractor or subcontractor engaged in performing operations for a principal as a part of the same project.

- C. With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or
2. Available under the applicable limits of insurance;
whichever is less.

This endorsement shall not increase the applicable limits of insurance.

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

ADDITIONAL INSURED - OWNERS, LESSEES OR CONTRACTORS - COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

SCHEDULE

Name Of Additional Insured Person(s) Or Organization(s)	Location And Description Of Completed Operations
Any person or organization whom you become obligated to include as an additional insured as a result of any contract or agreement you have entered into.	Per the written contract or written agreement
Information required to complete this Schedule, if not shown above, will be shown in the Declarations.	

A. Section II – Who Is An Insured is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" at the location designated and described in the Schedule of this endorsement performed for that additional insured and included in the "products-completed operations hazard".

However:

1. The insurance afforded to such additional insured only applies to the extent permitted by law; and
2. If coverage provided to the additional insured is required by a contract or agreement, the insurance afforded to such additional insured will not be broader than that which you are required by the contract or agreement to provide for such additional insured.

B. With respect to the insurance afforded to these additional insureds, the following is added to **Section III – Limits Of Insurance:**

If coverage provided to the additional insured is required by a contract or agreement, the most we will pay on behalf of the additional insured is the amount of insurance:

1. Required by the contract or agreement; or
2. Available under the applicable limits of insurance;

whichever is less.

This endorsement shall not increase the applicable limits of insurance.

POLICY NUMBER:
GL 956-62-56

COMMERCIAL GENERAL LIABILITY
CG 20 01 12 19

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

PRIMARY AND NONCONTRIBUTORY - OTHER INSURANCE CONDITION

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART

The following is added to the **Other Insurance** Condition and supersedes any provision to the contrary:

Primary And Noncontributory Insurance

This insurance is primary to and will not seek contribution from any other insurance available to an additional insured under your policy provided that:

(1) The additional insured is a Named Insured under such other insurance; and

(2) You have agreed in writing in a contract or agreement that this insurance would be primary and would not seek contribution from any other insurance available to the additional insured.

WAIVER OF TRANSFER OF RIGHTS OF RECOVERY AGAINST OTHERS TO US (WAIVER OF SUBROGATION)

This endorsement modifies insurance provided under the following:

COMMERCIAL GENERAL LIABILITY COVERAGE PART
ELECTRONIC DATA LIABILITY COVERAGE PART
LIQUOR LIABILITY COVERAGE PART
POLLUTION LIABILITY COVERAGE PART DESIGNATED SITES
POLLUTION LIABILITY LIMITED COVERAGE PART DESIGNATED SITES
PRODUCTS/COMPLETED OPERATIONS LIABILITY COVERAGE PART
RAILROAD PROTECTIVE LIABILITY COVERAGE PART
UNDERGROUND STORAGE TANK POLICY DESIGNATED TANKS

SCHEDULE

Name Of Person(s) Or Organization(s):

Pursuant to applicable written contract or agreement you enter into.

Information required to complete this Schedule, if not shown above, will be shown in the Declarations.
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The following is added to Paragraph 8. **Transfer Of Rights Of Recovery Against Others To Us** of Section IV – Conditions:

We waive any right of recovery against the person(s) or organization(s) shown in the Schedule above because of payments we make under this Coverage Part. Such waiver by us applies only to the extent that the insured has waived its right of recovery against such person(s) or organization(s) prior to loss. This endorsement applies only to the person(s) or organization(s) shown in the Schedule above.

PROFESSIONAL AND POLLUTION LEGAL LIABILITY POLICY FOR THE CONSTRUCTION AND ENVIRONMENTAL SERVICE INDUSTRIES

Certain coverages are “claims-made and reported” and have different reporting requirements from other sections of this Policy. In the event of a **Claim**, this Policy may require that a **Claim** be first made against you during the **Policy Period** and reported to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or the Optional Extended Reporting Period. Certain states mandate specific warnings, exceptions or conditions. Please read this Policy carefully, including the Declarations and all Endorsements.

This Policy contains provisions that limit the amount of **Legal Expense** we are responsible to pay.

Throughout this Policy, the words “we”, “us”, and “our” mean the Company stated in the Declarations. The words “you” and “your” mean the **Insured**.

Words that are **bolded**, except for caption headings, have the meaning set forth in SECTION III – DEFINITIONS, whether expressed in singular or plural throughout this Policy.

SECTION I - INSURING AGREEMENTS

A. Professional Coverages

1. Professional Liability Coverage

We will pay on your behalf for **Professional Loss** that you become legally obligated to pay because of a **Claim** resulting from an actual or alleged negligent act, error or omission in **Professional Services**, provided that:

- a. the **Professional Services** are rendered on or after the **Retroactive Date** and prior to the end of the **Policy Period**; and
- b. the **Claim** is first made against you during the **Policy Period** and reported to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period.

2. Rectification Expense Coverage

We will pay on your behalf for **Rectification Expense** to avoid or reduce a **Claim** covered under this Policy, provided that:

- a. all **Professional Services** giving rise to actual or potential damages are rendered on or after the **Retroactive Date** and prior to the end of the **Policy Period**;
- b. during the **Policy Period**, you provide us with immediate notice of the negligent act, error or omission and of the proposed corrective action, if any, along with all supporting documentation, in writing prior to incurring any **Rectification Expense**;
- c. you establish and we determine that your proposed **Rectification Expense** is reasonable and necessary in light of the actual liability for a **Claim** covered under this Policy that can be avoided or reduced by incurring the **Rectification Expense**; and
- d. all **Rectification Expense** must be approved by us, in writing, prior to being incurred by you.

If following the payment of **Rectification Expense**, a **Claim** is made against you, our total

payment, including any payments previously paid by us, will not exceed the Limits of Liability shown in Item (3) and Item (4) of the Declarations.

If, in order to prevent **Bodily Injury or Property Damage**, you take immediate action that results in **Rectification Expense**, but you are not reasonably able to obtain prior approval from us in writing, we will indemnify you for such expense incurred over a period not exceeding ten (10) business days, beginning from the time the immediate action was taken, provided you can reasonably prove to us that such immediate action reduced the amount of the **Bodily Injury or Property Damage** that would otherwise have been paid under this Policy in the absence of such immediate action.

3. **Protective Loss Coverage**

We will indemnify the **Named Insured** for **Protective Loss**:

- a. in excess of all applicable **Design Professional's Insurance**, or
- b. for all amounts not covered by the **Design Professional's Insurance** pursuant to a valid coverage denial or limitation that is not contested by the **Design Professional**,

resulting from an actual or alleged negligent act, error or omission in **Design Professional Services** performed by a **Design Professional**, provided that:

- (i) the **Design Professional Services** are rendered on or after the **Retroactive Date** and prior to the end of the **Policy Period**;
- (ii) the **Protective Claim** is first made by you against the **Design Professional** and reported by you to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period; and
- (iii) you have taken all steps necessary to pursue the **Protective Claim** and obtain recovery of all **Protective Loss** from the **Design Professional** and, where legally permissible, the **Design Professional's Insurance**.

B. **Pollution Coverages**

1. **Job Site Coverage - Occurrence**

We will pay on your behalf for **Pollution Loss** that you become legally obligated to pay as a result of a **Claim** arising from a **Pollution Condition** on, at, under or migrating from a **Job Site**, provided that:

- a. the **Bodily Injury, Property Damage or Environmental Damage** occurs during the **Policy Period**;
- b. the **Pollution Condition** results from **Contracting Services or Completed Operations**; and
- c. the **Pollution Condition** results in a **Claim** against you.

2. **Transportation Coverage**

We will pay on your behalf for **Pollution Loss** as a result of a **Pollution Condition** that first commences and finally ends during the course of **Transportation**, provided that:

- a. the **Transportation** takes place during the **Policy Period**; and
- b. the **Pollution Condition** is first discovered by you during the **Policy Period** and reported

to us, in writing, during the **Policy Period** or within ninety (90) days of the end of the **Policy Period**; or

- c. (i) the **Pollution Condition** results in a **Claim** against you; (ii) the **Claim** is for **Pollution Loss** that you become legally obligated to pay; and (iii) the **Claim** is first made against you during the **Policy Period** and reported to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period.

3. **Emergency Remediation Expense Coverage**

We will indemnify you for **Emergency Remediation Expense** incurred by you, provided that:

- a. the **Pollution Condition** and notice of the **Emergency Remediation Expense** are reported to us, in writing, during the **Policy Period**, but in no event later than fourteen (14) days from the discovery of the **Pollution Condition**, or the end of the **Policy Period**, whichever occurs first, and
- b. the **Pollution Condition** results from **Contracting Services** at a **Job Site**, or **Transportation**, rendered during the **Policy Period**.

4. **Pollution Protective Loss Coverage**

We will indemnify you for **Pollution Protective Loss**:

- a. in excess of all applicable **Subcontractor's Insurance**, or
- b. for all amounts not covered by the **Subcontractor's Insurance** pursuant to a valid coverage denial or limitation that is not contested by the **Subcontractor**,

resulting from a **Pollution Condition** on, at, under or migrating from a **Job Site** or a **Pollution Condition** in the course of **Transportation**, provided that:

- (i) the **Bodily Injury, Property Damage** or **Environmental Damage** occurs during the **Policy Period**;
- (ii) the **Pollution Condition** results from **Subcontractor Services** or **Completed Operations** of the **Subcontractor**;
- (iii) the **Pollution Protective Claim** is first made by you against the **Subcontractor**; and
- (iv) you have taken all steps necessary to pursue the **Pollution Protective Claim** and obtain recovery of all **Pollution Protective Loss** from the **Subcontractor** and, where legally permissible, the **Subcontractor's Insurance**.

5. **Non-Owned Disposal Site Coverage**

We will pay on your behalf for **Pollution Loss** that you become legally obligated to pay as a result of a **Pollution Condition** on, at, under or migrating from a **Non-Owned Disposal Site**, provided that:

- a. the **Pollution Condition** first commences on or after the **Retroactive Date** and prior to the end of the **Policy Period**;

- b. the **Pollution Condition** arises from waste or material generated by **Contracting Services** performed at a **Job Site** or originating from **Your Location**;
- c. the **Pollution Condition** results in a **Claim** against you; and
- d. the **Claim** is first made against you during the **Policy Period** and reported to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period.

6. Your Location Coverage

We will pay on your behalf for **Pollution Loss** as a result of a **Pollution Condition** on, at, under or migrating from **Your Location**, provided that:

- a. the **Pollution Condition** originates from **Your Location**; and
- b. the **Pollution Condition** is sudden and accidental and first commences during the **Policy Period** and finally ends within ten (10) consecutive days from its first commencement; and
- c. the **Pollution Condition** is first discovered by you during the **Policy Period** and reported to us, in writing, during the **Policy Period** or within ninety (90) days of the end of the **Policy Period**; or
- d. (i) the **Pollution Condition** results in a **Claim** against you; (ii) the **Claim** is for **Pollution Loss** that you become legally obligated to pay; and (iii) the **Claim** is first made against you during the **Policy Period** and reported to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period.

SECTION II - SUPPLEMENTAL COVERAGES

The Limits of Liability for each of the following Supplemental Coverages are separate from the Limits of Liability for the coverages in SECTION I - INSURING AGREEMENTS of this Policy, and payments made under these Supplemental Coverages do not erode the Aggregate Limits of Liability of this Policy. No Self-Insured Retention Amount applies to these Supplemental Coverages.

A. Disaster Response Expense Coverage

We will pay on your behalf up to an aggregate limit of liability of \$250,000 for any reasonable and necessary expenses incurred by you or a public relations or crisis management firm hired by you, with our prior written consent, to minimize potential harm to your reputation by maintaining or restoring public confidence in you resulting from a negligent act, error or omission in **Professional Services**, or a **Pollution Condition** resulting from **Contracting Services** or **Transportation**, that has or is likely to result in a **Media Event**. This limit of liability is the most we will pay regardless of the number of acts, errors or omissions, **Pollution Condition(s)** or **Media Event(s)**.

B. Green Building Materials Expense Coverage

We will pay on your behalf up to an aggregate limit of liability of \$250,000 for any reasonable and necessary expenses incurred by you in the use of **Green Building Materials**, even when the use of such materials is not necessary, as part of **Restoration Costs** when otherwise covered under this Policy. This limit of liability is the most we will pay regardless of the number of **Pollution Condition(s)**.

C. Protective Loss/Pollution Protective Loss Bankruptcy Litigation Expense Coverage

We will indemnify you up to an aggregate limit of liability of \$25,000 for the reasonable and necessary fees and expenses incurred by you for retaining bankruptcy counsel in the making of a **Protective Claim** or a **Pollution Protective Claim** that qualifies for coverage under this Policy against a **Design Professional** or **Subcontractor**, as applicable, who has filed for or has been placed into bankruptcy under the United States Bankruptcy Code, provided that the **Protective Claim** or **Pollution Protective Claim** results in a judgment for you against the **Design Professional** or **Subcontractor** that is final and no longer subject to appeal. This limit of liability is the most we will pay regardless of the number of **Claim(s)**.

D. Litigation Expense Coverage

We will indemnify you up to an aggregate limit of liability of \$25,000 for the actual loss of earnings and reasonable and necessary expenses incurred by you for attendance at depositions, hearings, arbitrations, **Mediation** or trials at our written request for **Claim(s)** covered under this Policy. This limit of liability is the most we will pay regardless of the number of **Claim(s)**.

E. Subpoena Expense Coverage

We will pay on your behalf up to an aggregate limit of liability of \$25,000 for reasonable and necessary fees and costs of counsel retained and incurred by us to advise you regarding the production of subpoenaed documents or to represent you while preparing for or giving testimony in response to a subpoena that is both served on you during the **Policy Period** and reported by you to us, in writing, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period, and arises from **Professional Services** or **Pollution Conditions** that are within the scope of coverage under this Policy. This limit of liability is the most we will pay regardless of the number of subpoenas served.

F. Disciplinary Proceeding Expense Coverage

We will pay on your behalf up to an aggregate limit of liability of \$25,000 for **Legal Expense** from a disciplinary proceeding against you before a design professional or contractor licensing board, provided that the disciplinary proceeding arises out of a negligent act, error or omission in **Professional Services**, or a **Pollution Condition** caused by **Contracting Services**, rendered on or after the **Retroactive Date** and before the end of the **Policy Period**, if the disciplinary proceeding is brought against you during the **Policy Period** and reported to us, in writing, by you, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period. This limit of liability is the most we will pay regardless of the number of proceedings.

G. Americans with Disabilities Act and Fair Housing Act Expense Coverage

We will pay on your behalf up to an aggregate limit of liability of \$25,000 for **Legal Expense** from the investigation of or response to a regulatory or administrative action from a governmental agency under the Americans with Disabilities Act of 1990 (ADA), as amended, or the Fair Housing Act (FHA), as amended, alleging a negligent act, error or omission in **Professional Services** rendered on or after the **Retroactive Date** and before the end of the **Policy Period**, if the regulatory or administrative action is brought against you during the **Policy Period** and reported to us, in writing, by you, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period. This limit of liability is the most we will pay regardless of the number of investigations or actions.

H. Building Information Modeling Expense Coverage

We will indemnify you up to an aggregate limit of liability of \$25,000 for reasonable and necessary additional expenses payable to a third-party software consulting company, that are not otherwise recoverable from any warranty or guarantee, arising from loss of or damage to information due to a malfunction of software used in connection with a Building Information Modeling (BIM) system purchased from a third-party vendor that was not modified by you or on your behalf, including erroneous calculations

or modeling, provided that the malfunction is first discovered during the **Policy Period** and after the system has been put to its intended use in the course of construction in support of **Professional Services** or **Contracting Services** and is reported to us, in writing, by you, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or, where applicable, the Optional Extended Reporting Period. This limit of liability is the most we will pay regardless of the number of consulting companies, systems purchased or malfunctions.

SECTION III - DEFINITIONS

A. Bodily Injury means:

1. physical injury, sickness or disease, sustained by any person, including death resulting therefrom, and any accompanying medical or environmental monitoring; or
2. mental anguish, emotional distress or shock, sustained by any person.

B. Claim means a monetary demand or notice, or assertion of a legal right, alleging liability or responsibility on your part, and includes, but is not limited to, a lawsuit, petition, or governmental or regulatory action commenced against you.

C. Client means the person or entity that directly hires the **Named Insured**, by written agreement signed by the **Named Insured**, to render **Contracting Services** and for whom the **Named Insured** renders such services.

D. Completed Operations means **Contracting Services** that are completed.

Completed Operations does not include **Contracting Services** that have been abandoned.

Contracting Services will be deemed completed at the earliest of the following times:

1. when all **Contracting Services** to be performed under a contract have been completed; or
2. when all **Contracting Services** to be performed at the **Job Site** have been completed; or
3. when that part of the **Contracting Services** performed at the **Jobsite** has been put to its intended use by any person or entity other than another contractor or subcontractor working on the same project.

Contracting Services that may require further service, maintenance, correction, repair or replacement, but are otherwise complete, shall be deemed completed.

E. Contracting Services means any construction or environmental activity that is performed by or on behalf of the **Named Insured**.

Contracting Services also includes **Completed Operations**.

F. Design Professional means any person or entity that is qualified, certified or licensed to perform professional services that are covered by **Design Professional's Insurance**, including any **Subcontractors** and subconsultants.

G. Design Professional's Insurance means any liability insurance issued to a **Design Professional**.

H. Design Professional Services means professional services that any **Design Professional**:

1. agreed to perform pursuant to a written agreement with you or a **Design Professional**; retained by you or on your behalf; and

2. are included within the **Professional Services** that you agreed to perform in your written agreement with a **Client**.

I. **Emergency Remediation Expense** means reasonable and necessary **Remediation Expense** incurred on an emergency basis, that you establish and we determine reasonable and necessary to mitigate the immediate effects of the **Pollution Condition** in light of the liability covered under this Policy that can be avoided or reduced by such mitigation.

J. **Environmental Damage** means physical damage into or upon land or structures thereupon, the atmosphere or any watercourse or body of water, including groundwater, caused by a **Pollution Condition** and resulting in **Remediation Expense**.

Environmental Damage does not include **Property Damage**.

K. **First Named Insured** means the person or entity stated in Item (1) of the Declarations.

L. **Green Building Materials** means building products or materials that are recognized by The Leadership in Energy and Environmental Design (LEED®), Green Globes Assessment and Rating System, International Green Construction Code or Energy Star as:

1. being environmentally preferable or sustainable; or
2. providing enhanced energy efficiency.

M. **Insured** means each of the following:

1. the **First Named Insured**;
2. the **Named Insured**;
3. the **Named Insured's** current and former directors, partners, principals, members, officers, stockholders, or trustees, but solely while acting within the course and scope of their duties as such;
4. the **Named Insured's** current and former employees, including **Leased Worker**, but solely within the course and scope of their employment or lease agreement;
5. the **Named Insured's** heirs, executors, administrators, assigns or legal representatives in the event of death, incapacity or bankruptcy, but only with respect to the liability of the **Named Insured** otherwise insured herein;
6. any **Predecessor in Interest**;
7. any entity newly formed or acquired by the **Named Insured** during the **Policy Period** where the **Named Insured** has greater than fifty percent (50%) ownership, control, or beneficial interest, provided however that:
 - a. coverage shall be provided only for **Professional Loss** and **Protective Loss** arising out of **Professional Services** or **Design Professional Services** or **Pollution Loss** and **Pollution Protective Loss** arising out of **Contracting Services** or **Subcontractor Services**, for services performed on or after the date of formation or acquisition, subject to the **Retroactive Date**; and
 - b. this coverage shall expire at the end of the **Policy Period** or within ninety (90) days of such formation or acquisition of the entity, whichever is earlier, unless you submit written notice to us providing detailed information concerning the newly formed or acquired entity and we agree to accept coverage and issue an endorsement confirming coverage;

8. the **Named Insured's** participation in a legal entity including a limited liability company or joint venture, but only to the extent of the **Named Insured's** legal liability for its rendering or failure to render **Professional Services** or **Contracting Services** under the respective legal entity or joint venture.
9. Solely with regard to SECTION I - INSURING AGREEMENTS, B.1. Job Site Coverage - Occurrence, B.2. Transportation Coverage and B.5. Non-Owned Disposal Site Coverage, any person or entity, including a **Client**, as required by a written agreement signed by the **Named Insured**, but only for:

- a. a **Pollution Condition** caused by **Contracting Services**; and
- b. the liability of the person or entity that results from the performance of the **Named Insured's Contracting Services**,

provided that such written agreement is signed by the **Named Insured** prior to the commencement of the **Pollution Condition**.

Any insurance afforded under the terms and conditions of this Policy shall be limited to the scope of coverage required by such agreement and shall be limited to the lesser of the amount of the limits of liability required by such written agreement or the Limits of Liability under this Policy. In no event shall we be liable for any amounts in excess of the Limits of Liability shown in Item (3) and Item (4) B. Pollution Coverages of the Declarations.

N. Insured Contract means that part of any written agreement under which, the **Named Insured** assumes the tort liability of another party to pay compensatory damages for **Bodily Injury, Property Damage or Environmental Damage**, to a third-person or entity, provided that such written agreement is signed by the **Named Insured** prior to the **Bodily Injury, Property Damage or Environmental Damage**. Tort liability means a liability that would be imposed by law in the absence of any agreement.

O. Job Site means the location where **Contracting Services** are rendered.

Job Site does not include:

- 1. any location that is owned, rented, leased, used, or occupied by you except for:
 - a. a location owned, rented, leased, or occupied by the **Client**; or
 - b. a location that is rented, leased, or occupied (but not owned) by the **Named Insured** and is used on a temporary basis by you for a single project only, during the course of providing **Contracting Services** for such single project.
- 2. a **Non-Owned Disposal Site** or **Your Location**.

P. Leased Worker means a person leased to you, by a labor leasing firm under an agreement between you and the labor leasing firm, to perform duties related to the conduct of your business.

Q. Legal Expense means legal costs, charges and expenses incurred in the investigation or defense of a **Claim** arising from **Professional Services** or **Contracting Services**, provided such costs, charges and expenses are authorized by us.

Legal Expense does not include the time and expense incurred by you in assisting us in the investigation or resolution of a **Claim** including, but not limited to, the costs of your in-house counsel, salary charges of your regular employees or officials, and fees and expenses of counsel retained by you, except as provided by SECTION II - SUPPLEMENTAL COVERAGES, D. Litigation Expense Coverage.

Legal Expense also does not include salary charges of our employees.

Legal Expense does not include any legal costs, charges and expenses incurred in relation to **Rectification Expense**, **Emergency Remediation Expense** or to any legal costs or expenses incurred by you in the investigation, prosecution, pursuit, adjustment, making or appeal of a **Protective Claim** or a **Pollution Protective Claim**, except as provided by SECTION II - SUPPLEMENTAL COVERAGES, C. Protective Loss/Pollution Protective Loss Bankruptcy Litigation Expense Coverage.

- R. Low-Level Radioactive Waste and Material** means waste or material that when disposed is acceptable for disposal in a near-surface disposal facility or a land disposal facility as defined in 10 CFR 61.2.
- S. Media Event** means a spontaneous happening that produces coverage by any mass media organization, particularly television news and newspapers, in either print or internet editions.
- T. Mediation** means an informal and non-binding dispute settlement process run by a neutral third-party approved by us.
- U. Mold Matter** means mold, mildew or any type or form of fungus, including mycotoxins, spores or by-products produced or released by fungi.
- V. Named Insured** means:
1. the **First Named Insured**; and
 2. any person or entity designated as a **Named Insured** by endorsement to this Policy.
- W. Natural Resource Damage** means physical injury to, or destruction of, as well as the assessment of such injury or destruction, including the resulting loss of use of the land or resources to the general public, fish, wildlife, biota, air, water, groundwater, drinking water supplies, and other such resources belonging to, or managed by, held in trust by, appertaining to, or otherwise controlled by the United States including the resources of the fishery conservation zone established by the Magnuson-Stevens Fishery Conservation and Management Act 16 U.S.C. 1801 et. seq.), any State, Local or Provincial government, any foreign government, any Native American tribe or, if such resources are subject to a trust restriction on alienation, any member of a Native American tribe. The terms Natural Resource Damage and Natural Resource Damage Assessments are as further defined by statute [CERCLA §§101(6); 107(a)(4)(C); OPA §§1001(5); 1002(b)(2)] and regulation [43 CFR Part 11; 15 CFR Part 990].
- X. Non-Owned Disposal Site** means a location used by you for the treatment, storage or disposal of waste or material, provided that:
1. the **Non-Owned Disposal Site** is not managed, operated, owned or leased by you or your affiliate;
 2. the **Non-Owned Disposal Site** is permitted or licensed by the applicable federal, state, local or provincial authorities to accept such waste or material as of the date the waste or material is treated, stored or disposed at the **Non-Owned Disposal Site**; and
 3. the **Non-Owned Disposal Site** is not listed on a proposed or final Federal National Priorities List or any state or provincial equivalent National Priority List, Superfund or Hazardous Waste List prior to the treatment, storage or disposal of the waste or material at the **Non-Owned Disposal Site**.
- Y. Policy Period** means the period listed in Item (2) of the Declarations or any shorter period resulting from cancellation.
- Z. Pollutants** means any solid, liquid, gaseous or thermal irritant or contaminant including, but not limited to, acids, alkalis, electromagnetic fields, fumes, hazardous substances, bacteria, **Low-Level Radioactive Waste and Material**, **Mold Matter**, odors, smoke, soot, toxic chemicals, vapors and waste materials, including medical, infectious and pathological wastes.

AA. Pollution Condition means:

1. the discharge, dispersal, release, seepage, migration or escape of **Pollutants** into or upon land or structures thereupon, the atmosphere or any watercourse or body of water, including groundwater; and
2. the presence of **Mold Matter** in or on buildings or structures.

BB. Pollution Loss means each of the following that results from a **Pollution Condition**:

1. a monetary judgment, award or settlement of compensatory damages:
 - a. resulting from **Bodily Injury** or **Property Damage**; or
 - b. for **Remediation Expense**;
2. with regard to SECTION I - INSURING AGREEMENTS, B.2. Transportation Coverage and B.6. Your Location Coverage, **Remediation Expense**;
3. civil fines and penalties assessed against a **Client** that the **Named Insured** is legally liable, but only where insurance coverage for such fines and penalties is allowable by law;
4. civil fines and penalties assessed against you, but only where insurance coverage for such fines and penalties is allowable by law;
5. punitive, exemplary or multiplied damages that you are legally liable, but only where insurance coverage for such damages is allowable by law;
6. **Legal Expense** associated with Subsections BB.1. through BB.5 above;
7. **Restoration Costs**; and
8. the value of any reasonable and necessary services rendered, pursuant to any resolution that we have approved in advance in writing, by you to mitigate a **Pollution Condition** resulting from **Contracting Services**.

Pollution Loss does not include:

- a. injunctive or equitable relief;
- b. the return of fees or charges for services rendered; or
- c. your profit, overhead or mark-up.

CC. Pollution Protective Claim means a written demand made or lawsuit commenced by you against a **Subcontractor** alleging liability or responsibility on the part of the **Subcontractor** for **Pollution Protective Loss** based upon or arising out of the **Subcontractor's** rendering or failure to render **Subcontractor Services**.

DD. Pollution Protective Loss means the amount you are legally entitled to recover from a **Subcontractor**, as determined by:

1. a final monetary judgment by a court of competent jurisdiction;
2. a final monetary award resulting from an arbitration or other dispute resolution proceeding, that you participate with our prior written consent; or

3. a settlement that we agree to in advance, in writing.

EE. Predecessor in Interest means any entity whose assets have been acquired by the **Named Insured** or whose partners, principals or shareholders have joined the **Named Insured** and whose name has been stated in the Application, submitted for this Policy and executed by the **Named Insured**, and for whose insurance the **Named Insured** is responsible by written agreement.

FF. Professional Loss means:

1. a monetary judgment, award or settlement of compensatory damages;
2. civil fines and penalties assessed against a third-party other than you that you are legally liable, but only where insurance coverage for such fines and penalties is allowable by law;
3. civil fines and penalties assessed against you, but only where insurance coverage for such fines and penalties is allowable by law;
4. punitive, exemplary or multiplied damages that you are legally liable, but only where insurance coverage for such damages is allowable by law;
5. liquidated damages, but only to the extent you would be legally liable in the absence of a contractual agreement;
6. **Legal Expense** associated with Subsections FF.1. through FF.5. above; and
7. the value of any services rendered by you or on your behalf, pursuant to any resolution approved by us in writing, prior to the services being rendered, to correct a negligent act, error or omission in the performance of **Professional Services**.

Professional Loss does not include:

- a. injunctive or equitable relief;
- b. the return of fees or charges for services rendered; or
- c. your overhead, mark-up or profit.

GG. Professional Services means those activities listed in Item (5) of the Declarations that are rendered by or on behalf of the **Named Insured**.

HH. Property Damage means each of the following caused by a **Pollution Condition**:

1. physical injury to or destruction of tangible property, including the resulting loss of use thereof;
2. loss of use of tangible property that has not been physically injured or destroyed;
3. diminished third-party property value; or
4. **Natural Resource Damage**.

Property Damage does not include **Environmental Damage**.

II. Protective Claim means a written demand made or lawsuit commenced by you against a **Design Professional** alleging liability or responsibility on the part of the **Design Professional** for **Protective Loss** based upon or arising out of the **Design Professional's** rendering or failure to render **Design Professional Services**.

JJ. Protective Loss means the amount you are legally entitled to recover from the **Design Professional**, as determined by:

1. a final monetary judgment by a court of competent jurisdiction;
2. a final monetary award resulting from an arbitration or other dispute resolution proceeding, that you participate in with our prior written consent; or
3. a settlement that we agree to in advance, in writing.

KK. Rectification Expense means direct costs and expenses to correct actual damages or prevent potential damages resulting from a negligent act, error or omission in your **Professional Services**.

Rectification Expense does not include any of your profit, overhead, mark-up; or any betterment to a project that **Rectification Expense** applies.

LL. Remediation Expense means expense resulting from **Environmental Damage** caused by a **Pollution Condition** and incurred to investigate, assess, remove, dispose of, treat, abate, contain or neutralize a **Pollution Condition**, including any associated monitoring and testing costs.

MM. Responsible Insured means any of your officers, directors, partners, members, managers, supervisors or foreman, or any of your employees that have responsibility, in whole or in part, for risk control, risk management, health and safety or environmental affairs, control or compliance, and any manager of **Your Location**.

NN. Restoration Costs means reasonable and necessary costs incurred by you to restore, repair or replace real or personal property to substantially the same condition it was in prior to being damaged during work performed in the course of incurring **Remediation Expense**. **Restoration Costs** include the use of **Green Building Materials**, but only as set forth in SECTION II - SUPPLEMENTAL COVERAGES, B. Green Building Materials Expense Coverage.

However, these costs shall not exceed the Actual Cash Value of such real or personal property immediately prior to incurring the **Remediation Expense** or include costs associated with improvements or betterments, except for **Green Building Materials**. Actual Cash Value means the cost to replace such real or personal property, immediately prior to incurring the **Remediation Expense**, minus the accumulated depreciation of the real or personal property.

OO. Retroactive Date means the date listed in Item (4) of the Declarations for each applicable coverage that is specified and any **Retroactive Date** listed on an endorsement to this Policy.

PP. Subcontract means a written agreement, purchase order or any such legal instrument issued under your written agreement for the performance of **Contracting Services** or **Transportation**.

QQ. Subcontractor means any person or entity that enters into a **Subcontract** that assumes some or all of your obligation(s) to the **Client**.

RR. Subcontractor Services means **Contracting Services** or **Transportation** that are rendered by or on behalf of the **Subcontractor**.

SS. Subcontractor's Insurance means any liability insurance under which, the **Subcontractor** qualifies as an insured.

TT. Transportation means the movement of waste or material by land motor vehicle, trailer, semi-trailer, mobile equipment and watercraft, including the loading and unloading of such waste or material from the point of origin until the waste or material has arrived at its final destination, provided that:

1. the **Pollution Condition** occurs while in support of **Contracting Services**;

2. the **Pollution Condition** occurs at a location other than the **Job Site** or **Your Location**; and
3. the person or entity transporting the waste or material is properly licensed to transport such waste or material by the means utilized.

UU. Underground Storage Tank means any stationary container or vessel, including the associated piping connected thereto, that is ten percent (10%) or more beneath the surface of the ground and is:

1. constructed primarily of non-earthen materials; and
2. designated to contain any substance.

For purposes of this definition, associated piping means piping leading to and away from the **Underground Storage Tank** until such piping is aboveground or terminates in another **Underground Storage Tank**, receptacle or manufacturing process.

VV. Your Location means a location owned, rented to or leased by the **Named Insured**, provided that such location is listed in the Your Location Schedule endorsed onto this Policy.

Your Location does not include a **Job Site** or **Non-Owned Disposal Site**.

SECTION IV - EXCLUSIONS

A. The following exclusions apply to SECTION I - INSURING AGREEMENTS, A. Professional Coverages and B. Pollution Coverages:

This Policy does not apply to any **Claim**, negligent act, error or omission in **Professional Services, Professional Loss, Rectification Expense, Protective Loss, Pollution Condition, Pollution Loss, Emergency Remediation Expense or Pollution Protective Loss** directly or indirectly for or based upon or arising out of:

1. Contractual Liability
your:

- a. assumption of liability in a contract or agreement; or
- b. breach of contract or agreement.

This exclusion does not apply to:

- (i) liability that you would have in the absence of a contract or agreement; or
- (ii) solely with regard to SECTION I – INSURING AGREEMENTS, B.1. Job Site Coverage - Occurrence and B.2. Transportation Coverage, liability assumed by the **Named Insured** in an **Insured Contract**.

2. Employer's Liability
any injury to:

- a. any of your employees, including any **Leased Workers**, directors, partners, principals, members, officers, stockholders or trustees, if such injury arises in the course of:
 - (i) employment by you; or
 - (ii) performing duties related to the conduct of your business; or

- b. the spouse, domestic partner, child, parent, brother or sister of anyone set forth in Subsection 2.a. above, as a consequence of any injury to any of the persons described in Subsection 2.a. above.

This exclusion applies whether you may be liable as an employer or in any other capacity and to any obligation to share damages with or repay someone else who must pay damages because of the injury.

This exclusion does not apply to liability the **Named Insured** assumed under an **Insured Contract**.

3. Express Warranty and Guaranty
any express warranty or guaranty.

This exclusion does not apply to liability you would have in the absence of such express warranty or guaranty.

4. Your Faulty Workmanship
solely with regard to SECTION I - INSURING AGREEMENTS, B. Pollution Coverages, the cost to repair or replace faulty workmanship, construction, fabrication, installation, assembly, erecting, manufacture or remediation, if such faulty workmanship, construction, fabrication, installation, assembly, erecting, manufacture or remediation was performed, in whole or in part, by you.

5. Fiduciary Liability
any involvement by you:

- a. as a director, partner, principal, member, officer, stockholder, trustee, or employee of a business enterprise not stated in Item (1) of the Declarations or of any charitable organization, or pension, welfare, profit sharing, mutual or investment fund or trust; or
- b. as a fiduciary under the Employee Retirement Income Security Act of 1974, as amended, or any regulation or order issued pursuant thereto or under any other employee benefit plan.

6. Hostile Acts
any consequence, whether direct or indirect, of war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, insurrection or military or usurped power, strike, riot, or civil commotion.

7. Insurance and Suretyship
the requiring, obtaining, maintaining, advising as to, or the failure to require, obtain, maintain or advise as to any form of insurance, suretyship or bond, either with respect to any **Insured** or any other person or entity.

8. Insured versus Insured
any **Claim** made by an **Insured** against any other **Insured**.

This exclusion does not apply to a **Claim** by any person or entity, including a **Client**, that meets the definition of an **Insured** in SECTION III – DEFINITIONS, M. **Insured**, Subsection 9.

9. Intentional and Dishonest Acts
a. intentional disregard of, or non-compliance with, any statute, regulation, ordinance, law or order, by or at your direction or your agent's direction; or
b. actual or alleged fraudulent, dishonest, malicious or intentionally or inherently harmful conduct by you.

This exclusion does not apply to any **Insured** that did not allegedly commit or allegedly participate in committing any of the forgoing described above.

10. Known Circumstances or Conditions

- a. a **Claim**, negligent act, error or omission in **Professional Services, Professional Loss, Rectification Expense, Protective Claim, Protective Loss, Pollution Condition, Pollution Loss, Emergency Remediation Expense, Pollution Protective Claim or Pollution Protective Loss** known by a **Responsible Insured** prior to the inception of the **Policy Period**; or
- b. a circumstance or condition known by a **Responsible Insured** prior to the inception of the **Policy Period** where the **Responsible Insured** should have reasonably foreseen that a **Claim**, negligent act, error or omission in **Professional Services, Professional Loss, Protective Claim, Protective Loss, Pollution Condition, Pollution Loss, Pollution Protective Claim, and Pollution Protective Loss** could result, or **Rectification Expense or Emergency Remediation Expense** could be incurred.

However, in the event that during the **Policy Period** you exacerbate a **Pollution Condition** caused by others, coverage is not excluded for that portion of the **Pollution Loss, Emergency Remediation Expense or Pollution Protective Loss** that would not exist but for your exacerbation of the **Pollution Condition**.

11. Notices to Previous Insurers

any **Claim**, negligent act, error or omission in **Professional Services, Rectification Expense, Protective Claim, Pollution Condition, Emergency Remediation Expense, Pollution Protective Claim** or other circumstance reported by you in part or in whole under any prior policy.

12. Products

any goods, materials or products designed, manufactured, sold, handled, distributed or supplied by you, a **Design Professional**, a **Subcontractor** or by others under license or trade name from you, a **Design Professional** or **Subcontractor**.

This exclusion does not apply to:

- a. the design of a good or product that has been specifically designed or otherwise provided to accommodate the specifications of a particular project or multiple projects for a specific customer. This exception does not apply to any subsequently manufactured goods or products using the same design, without alteration, as any previously customized good or product;
- b. computer software or programs specifically developed for a third-party that is not available for general sale and distribution, and is provided in conjunction with **Professional Services, Design Professional Services, Contracting Services or Subcontractor Services**; or
- c. the fabrication, assembly or installation of goods, materials or products provided in connection with the performance of **Contracting Services**.

13. Property

- a. real property owned, rented or leased by you, except for **Your Location** or real property owned or leased by, or in the care, custody or control of, the **Client**; or
- b. for the repair, replacement or restoration of any personal property you own or lease, except for personal property owned or leased by, or in the care, custody or control of, the **Client**.

14. Radioactive / Nuclear Material

- a. material or waste that if disposed must be placed in a geologic repository as defined in 10 CFR 60 or 10 CFR 63 or any other existing or planned disposal facility for waste that would not otherwise qualify as **Low-Level Radioactive Waste and Material**;
- b. radioactive waste or material for which, you have coverage under any nuclear insurance policy or have received indemnity from any United States or international government authority or statute, including but not limited to the United States Price Anderson Act (Public Law 100-408) or the United States National Defense Contracts Act (Public Law 85-804);
- c. tailings, milling wastes, or products produced by the extraction of uranium or thorium from any ore processed for its source material;
- d. any nuclear weapon, engineered assembly, or component thereof designed to cause the release of radiological material or any hazardous substance onto a chosen target or to generate a nuclear detonation; and
- e. the existence, required removal or abatement of naturally occurring radioactive materials or technologically enhanced naturally occurring radioactive materials, including but not limited to radon,

including, but not limited to the actual, alleged or threatened exposure of any person(s) or property to any such matter.

15. Related Entities and Individuals

a **Claim** by an entity or individual:

- a. that wholly or partially owns, operates or manages you;
- b. that you have a direct or indirect ownership interest of twenty-five percent (25%) or more;
- c. that is controlled, operated or managed by you; or
- d. that is an affiliate of you.

16. Workers' Compensation and Similar Laws

your obligation under a workers' compensation, unemployment compensation, disability benefits law or any similar law.

B. The following exclusions apply only to SECTION I - INSURING AGREEMENTS, A.3. Protective Loss Coverage and B.4. Pollution Protective Loss Coverage:

We shall not be liable to make any payment or indemnify you for any **Protective Loss** or **Pollution Protective Loss** directly or indirectly for or based upon or arising out of:

1. Default Judgment

a default judgment, monetary award or any liability imposed where the **Design Professional** or **Subcontractor** failed to appear, respond, answer, defend or otherwise plead in connection with the **Protective Claim** or **Pollution Protective Claim**.

This exclusion does not apply if you establish that you would have recovered, from the **Design Professional** or **Subcontractor** in the absence of a default judgment, a monetary award or had any liability imposed where the **Design Professional** or **Subcontractor** failed to appear, respond, answer, defend or otherwise plead in connection with the **Protective Claim** or **Pollution Protective Claim**.

2. Project-Specific Policy

a **Protective Claim** or **Pollution Protective Claim** for which, insurance is available to you under a project specific policy, or would have been available but for the exhaustion of limits of liability under such policy.

C. The following exclusions apply only to SECTION I - INSURING AGREEMENTS, B.6. Your Location Coverage:

We shall not be liable to make any payment for any **Pollution Loss** directly or indirectly for or based up or arising out of:

1. Asbestos and Lead-Based Paint

the existence of, required removal or abatement of lead-based paint or asbestos, in any form, in any building or structure on or at **Your Location**, including, but not limited to, products containing asbestos, asbestos fibers, asbestos dust, and asbestos containing materials.

2. Divested Location

any **Pollution Condition** on, at, under or migrating from **Your Location**, where the actual discharge, dispersal, release, seepage, migration or escape of **Pollutants** commenced subsequent to the time **Your Location** was sold, given away, no longer used, or abandoned by you, or condemned.

3. Material Change in Use

a material change in the use of, or operations at, **Your Location** from the use or operations identified by you in the statements and information contained in the Application, submitted for this Policy and executed by you, and any other supplemental materials submitted to us prior to the inception of the **Policy Period** or prior to adding such location to the Your Location Schedule endorsed onto this Policy.

4. Underground Storage Tank

the existence of any **Underground Storage Tank** on, at or under **Your Location**.

This exclusion does not apply to:

- a. an **Underground Storage Tank** that is closed, abandoned in place or removed prior to the inception of the **Policy Period**, in accordance with all applicable Federal, State, Local or Provincial regulations, in effect at the time of closure, abandonment or removal;
- b. an **Underground Storage Tank** that is identified in the Your Location Schedule endorsed onto this Policy;
- c. an **Underground Storage Tank**, the existence of which, is unknown by a **Responsible Insured** as of the inception of the **Policy Period**;
- d. flow-through process tanks, including oil/water separators; or
- e. storage tank(s) situated in a man-made underground area (such as a basement, cellar, mine shaft or tunnel) if the storage tank is situated upon or above the surface of the floor.

SECTION V - LIMITS OF LIABILITY AND SELF-INSURED RETENTION AMOUNT

A. Aggregate Limits of Liability

1. The Policy Aggregate Limit of Liability set forth in Item (3) of the Declarations is the most we shall pay for the sum of all **Professional Loss, Rectification Expense, Protective Loss, Pollution Loss, Emergency Remediation Expense, Pollution Protective Loss**, and any other amounts for which, insurance is afforded under SECTION I - INSURING AGREEMENTS of this Policy.

2. The Aggregate Limit of Liability for A. Professional Coverages, set forth in Item (4) A. Professional Coverages of the Declarations is the most we shall pay for the sum of all **Professional Loss, Rectification Expense, Protective Loss** and any other amounts for which, insurance is afforded under SECTION I - INSURING AGREEMENTS, A. Professional Coverages of this Policy.
3. The Aggregate Limit of Liability for B. Pollution Coverages, set forth in Item (4) B. Pollution Coverages of the Declarations is the most we shall pay for the sum of all **Pollution Loss, Emergency Remediation Expense, Pollution Protective Loss**, and any other amounts for which, insurance is afforded under SECTION I - INSURING AGREEMENTS, B. Pollution Coverages of this Policy.

B. Limits of Liability

1. Subject to the Aggregate Limit of Liability for A. Professional Coverages, set forth in Item (4) A. Professional Coverages of the Declarations, the Limit of Liability for each negligent act, error or omission for each coverage set forth in Item (4) A. Professional Coverages of the Declarations is the most we shall pay for all **Professional Loss, Rectification Expense and Protective Loss** based upon or arising out of a single negligent act, error or omission for which, insurance is afforded under SECTION I - INSURING AGREEMENTS, A. Professional Coverages of this Policy.
2. Subject to the Aggregate Limit of Liability for B. Pollution Coverages, set forth in Item (4) B. Pollution Coverages of the Declarations, the Limit of Liability for each **Pollution Condition** for each coverage set forth in Item (4) B. Pollution Coverages of the Declarations is the most we shall pay for all **Pollution Loss, Emergency Remediation Expense and Pollution Protective Loss** based upon or arising out of the same, related, repeated or continuous **Pollution Condition** for which, insurance is afforded under SECTION I - INSURING AGREEMENTS, B. Pollution Coverages of this Policy.

C. Legal Expense in Addition to the Limits of Liability

1. Professional Liability

Solely with respect to SECTION I - INSURING AGREEMENTS, A.1. Professional Liability Coverage, once the applicable Self-Insured Retention Amount has been satisfied, **Legal Expense** shall not begin to reduce the Limits of Liability set forth in Item (3) or Item (4) A. Professional Coverages Aggregate Limit of Liability of the Declarations, until we have incurred, on behalf of one or more **Insureds**, **Legal Expense** in the aggregate of that amount, if any, set forth in Item (4) A. **Legal Expense** Aggregate Limit of Liability of the Declarations. Once we have incurred the **Legal Expense** Aggregate Limit of Liability, **Legal Expense** applies to and reduces each applicable Limit of Liability set forth in Item (3) and Item (4) A. Professional Coverages Aggregate Limit of Liability of the Declarations.

2. Pollution Liability

Solely with respect to SECTION I - INSURING AGREEMENTS, B.1. Job Site Coverage - Occurrence, B.2. Transportation Coverage, B.5. Non-Owned Disposal Site Coverage and B.6. Your Location Coverage, once the applicable Self-Insured Retention Amount has been satisfied, **Legal Expense** shall not begin to reduce the Limits of Liability set forth in Item (3) and Items (4) B. Pollution Coverages Aggregate Limit of Liability of the Declarations until we have incurred, on behalf of one or more **Insureds**, **Legal Expense** in the aggregate of that amount, if any, set forth in Item (4) B. **Legal Expense** Aggregate Limit of Liability of the Declarations. Once we have incurred the **Legal Expense** Aggregate Limit of Liability, **Legal Expense** applies to and reduces each applicable Limit of Liability set forth in Item (3) and Item (4) B. Pollution Coverages Aggregate Limit of Liability of the Declarations.

D. Self-Insured Retention Amount

1. The Self-Insured Retention Amount must be satisfied before we have an obligation to pay. The Self-Insured Retention Amount must be paid by you and be uninsured. In the event that you or the person or entity designated by the **First Named Insured** does not satisfy the Self-Insured Retention Amount, the **First Named Insured** is responsible for the Self-Insured Retention Amount obligation.
2. Subject to the Limits of Liability set forth in Item (3) and Item (4) A. Professional Coverages of the Declarations, we are liable only for that portion of **Professional Loss** and **Rectification Expense** under SECTION I - INSURING AGREEMENTS, A. Professional Coverages, of this Policy in excess of the Self-Insured Retention Amount for each negligent act, error or omission, if any, set forth in Item (4) A. Professional Coverages of the Declarations for each such coverage.
3. Subject to the Limits of Liability set forth in Item (3) and Item (4) B. Pollution Coverages of the Declarations, we are liable only for that portion of **Pollution Loss** and **Emergency Remediation Expense** under SECTION I - INSURING AGREEMENTS, B. Pollution Coverages, of this Policy in excess of the Self-Insured Retention Amount for each Pollution Condition, if any, set forth in Item (4) B. Pollution Coverages of the Declarations for each such coverage.
4. **Legal Expense** applies to and reduces each applicable Self-Insured Retention Amount set forth in Item (4) A. Professional Coverages and Item (4) B. Pollution Coverages of the Declarations.
5. When a written agreement executed prior to the negligent act, error or omission in **Professional Services** or discovery of a **Pollution Condition**, specifies a Self-Insured Retention Amount less than the Self-Insured Retention Amount for the applicable coverage(s) stated in Item (4) of the Declarations, then the Self-Insured Retention Amount applicable to such coverage shall be the lesser amount required by that written agreement, provided that:
 - a. you promptly reimburse us for the amount of the difference between the Self-Insured Retention Amount required by written agreement and the Self-Insured Retention Amount for the applicable coverage(s) stated in Item (4) of the Declarations; and
 - b. you indemnify us for any loss, cost, expense or attorney's fees and costs incurred by us in enforcing our rights in this Subsection D.4. above.
6. If you mutually agree with us to use **Mediation** to resolve a **Claim** and the **Claim** is subsequently resolved as a direct consequence of **Mediation**, the Self-Insured Retention Amount applicable to said **Claim** shall be reduced by fifty percent (50%), subject to a maximum reduction of no more than \$25,000. In the event you owe any portion of the Self-Insured Retention Amount, it shall be paid to us within thirty (30) days following receipt of the executed, full and final release of the **Claim**.

E. Multiple Insureds and Multiple Related Claims

1. The number of **Insureds** covered by this Policy shall not operate to increase either our Limits of Liability or **Legal Expense** set forth in Item (3) or Item (4) of the Declarations, or as set forth in SECTION II - SUPPLEMENTAL COVERAGES, notwithstanding any other provision of this Policy.
2. Two or more **Claim(s)** against one or multiple **Insureds**, **Rectification Expense** indemnified for one or multiple **Insureds**, or **Protective Claim(s)** made by one or multiple **Insureds**, for **Professional Loss**, **Rectification Expense** or **Protective Loss** based upon or arising out of the same, related, repeated or continuous negligent act, error or omission shall be treated as a single **Claim**, subject to:
 - a. a single Limit of Liability;

- b. a single Self-Insured Retention Amount; and
- c. shall not operate to increase either our Limits of Liability or **Legal Expense** set forth in Item (3) or Item (4) of the Declarations.

All such **Claim(s)**, **Rectification Expense** or **Protective Claim(s)**, whenever made, shall be considered first made on the date the earliest such **Claim**, **Rectification Expense** or **Protective Claim** was first made, or incurred and only a policy providing coverage for the earliest **Claim(s)**, incurred **Rectification Expense** or **Protective Claim(s)** shall afford coverage.

If more than one coverage applies to the whole or a part of any **Claim(s)**, **Rectification Expense** or **Protective Claim(s)** treated as a single **Claim** pursuant to this section, then the each negligent act, error or omission Limit of Liability for the entirety of that single **Claim** and the applicable Self-Insured Retention Amount for that single **Claim** shall be those set forth in Items (4) A.1. Professional Liability Coverage, A.2. Rectification Expense Coverage, or A.3. Protective Loss Coverage of the Declarations for the applicable coverage with the largest each negligent act, error or omission Limit of Liability and Self-Insured Retention Amount.

If more than one applicable coverage has the same each negligent act, error or omission Limit of Liability, but have different Self-Insured Retention Amounts, then the largest Self-Insured Retention Amount shall apply to that single **Claim**.

- 3. Two or more **Claim(s)** against one or multiple **Insureds**, **Emergency Remediation Expense** indemnified for one or multiple **Insureds**, or **Pollution Protective Claim(s)** made by one or multiple **Insureds**, for **Pollution Loss**, **Emergency Remediation Expense** or **Pollution Protective Claim(s)** arising out of the same, related, repeated or continuous **Pollution Condition** shall be treated as a single **Claim**, subject to:

- a. a single Limit of Liability;
- b. a single Self-Insured Retention Amount; and
- c. shall not operate to increase either our Limits of Liability or **Legal Expense** set forth in Item (3) or Item (4) of the Declarations.

All such **Claim(s)**, **Emergency Remediation Expense** or **Pollution Protective Claim(s)**, whenever made, shall be considered first made on the date the earliest such **Claim(s)**, **Emergency Remediation Expense** or **Pollution Protective Claim(s)** was first made and only the policy providing coverage for the earliest **Claim(s)**, **Emergency Remediation Expense** or **Pollution Protective Claim(s)** shall afford coverage.

If more than one coverage applies to the whole or a part of a **Claim(s)**, **Pollution Protective Claim(s)** or **Emergency Remediation Expense** treated as a single **Claim** pursuant to this section, then the each Pollution Condition Limit of Liability for the entirety of that single **Claim** and the applicable Self-Insured Retention Amount for that single **Claim** shall be those set forth in Items (4) B.1. Job Site Coverage - Occurrence, B.2. Transportation Coverage, B.3. Emergency Remediation Expense, B.4. Pollution Protective Loss Coverage, B.5. Non-Owned Disposal Site Coverage, and B.6. Your Location Coverage of the Declarations for the applicable coverage with the largest each **Pollution Condition** Limit of Liability.

If more than one applicable coverage has the same each **Pollution Condition** Limit of Liability, but has different Self-Insured Retention Amounts, then the largest Self-Insured Retention Amount shall apply to that single **Claim**.

F. Exhaustion of Applicable Limit of Liability

Once an applicable Limit of Liability set forth in Item (3) or Item (4) of the Declarations, or set forth in SECTION II - SUPPLEMENTAL COVERAGES, has been exhausted, we have no obligation to:

1. defend or continue to defend any **Claim** by paying **Legal Expense**; or
2. pay any **Professional Loss, Rectification Expense, Protective Loss, Pollution Loss, Emergency Remediation Expense, Pollution Protective Loss**, SECTION II - SUPPLEMENTAL COVERAGES, or any other amounts under this Policy.

G. Insurance Under Multiple Policies

1. Notwithstanding anything to the contrary in this Policy or any other policy issued by us or an entity affiliated with us, under no circumstances shall more than one policy issued to you by us or an entity affiliated with us apply to any **Professional Loss, Rectification Expense, Protective Loss, Pollution Loss, Emergency Remediation Expense** or **Pollution Protective Loss** that:
 - a. arise(s) out of the same, related, repeated or continuous act(s), error(s) or omission(s) in rendering or failing to render **Professional Services** or **Design Professional Services**; or
 - b. arise(s) out of the same, related, repeated or continuous **Pollution Condition(s)**; or
 - c. arise(s) out of **Bodily Injury, Property Damage, Environmental Damage** or other injury, damage or loss that occurs or continues through more than one policy period of two or more policies (including this Policy) issued by us or an entity affiliated with us.
2. If the **Bodily Injury, Property Damage, Environmental Damage** or other injury, damage or loss arises out of a **Pollution Condition(s)**, then the only policy that shall respond to any resulting **Professional Loss, Rectification Expense, Protective Loss, Pollution Loss, Emergency Remediation Expense** or **Pollution Protective Loss** is the first policy in effect when the first exposure to the **Pollution Condition(s)** occurs.

However, if the date of the first exposure to the **Pollution Condition(s)**:

- a. occurs prior to the first day of the policy period of the first policy issued by us or an entity affiliated with us, or
- b. cannot be determined,

then the first exposure to the **Pollution Condition(s)** shall be deemed to have occurred only on the first day of the policy period of the first policy issued by us or an entity affiliated with us.

3. If the **Bodily Injury, Property Damage, Environmental Damage** or other injury, damage or loss arises out of something other than a **Pollution Condition**, then the only policy that shall respond is the policy in effect when the actual or alleged negligent act(s), error(s) or omission(s) in rendering or failing to render **Professional Services** or **Design Professional Services** was first reported to us or an entity affiliated with us.

SECTION VI – OPTIONAL EXTENDED REPORTING PERIOD

- A. SECTION VI – OPTIONAL EXTENDED REPORTING PERIOD only applies to insurance afforded by this Policy under SECTION I - INSURING AGREEMENTS, A.1. Professional Liability Coverage, A.3. Protective Loss Coverage, B.2. Transportation Coverage, B.5. Non-Owned Disposal Site Coverage and B.6. Your Location Coverage.

1. In the event of non-renewal or cancellation of this Policy by the **First Named Insured**, the **First Named Insured** may purchase an Optional Extended Reporting Period of up to three (3) years, for an additional premium of not more than one hundred percent (100%) of the total premium for this Policy, commencing on the last day of the **Policy Period**. The ninety (90) days of additional reporting, if applicable, will be merged into the Optional Extended Reporting Period and is not in addition to the Optional Extended Reporting Period.
2. The **First Named Insured** must request the purchase of the Optional Extended Reporting Period in writing to us within thirty (30) days following the termination of this Policy and pay the premium to us promptly when due.
3. If purchased, this extension applies to:
 - a. a **Claim** or **Protective Claim** first made against you or by you, as applicable, during the **Policy Period** and reported by you to us, in writing, during the Optional Extended Reporting Period, and that is otherwise covered by this Policy; and
 - b. a **Claim** or **Protective Claim** first made against you or by you, as applicable, and reported by you to us, in writing, during the Optional Extended Reporting Period, and that is otherwise covered by this Policy. For the purpose of this section, the **Claim** or **Protective Claim** shall be deemed to have been made against you or by you, as applicable, on the last day of the **Policy Period**.
4. Notwithstanding anything to the contrary above, the Optional Extended Reporting Period does not apply where:
 - a. this Policy is terminated for fraud, misrepresentation or non-payment of premium or cancelled on any ground set forth in Subsections 2.a., 2.b. or 2.c. of SECTION VIII - CONDITIONS, D. Cancellation; or
 - b. you have obtained other insurance from an entity other than us or our affiliate, effective after the end of the **Policy Period**, where such other insurance applies in whole or in part, to your professional liability, contractor's liability or pollution legal liability.
5. The Optional Extended Reporting Period granted hereunder shall be subject to all the terms and conditions of this Policy and shall only apply to **Claim(s)** or **Protective Claim(s)** based upon or arising out of the performance of **Professional Services**, **Design Professional Services** or **Contracting Services** prior to the cancellation or non-renewal of this Policy, and that are otherwise covered by this Policy.
6. The Optional Extended Reporting Period shall be non-cancellable. At the commencement of the Optional Extended Reporting Period, the entire premium shall be considered one hundred percent (100%) fully earned.
7. The Limits of Liability applicable to the Optional Extended Reporting Period shall be the Limits of Liability remaining under the terminated policy.
8. The quotation of different terms and conditions by us and the **First Named Insured's** choice not to accept those quoted terms and conditions shall not be construed as non-renewal of this Policy.

SECTION VII - REPORTING, DEFENSE, SETTLEMENT AND COOPERATION

A. Duties

As a condition precedent to the coverage hereunder:

1. You must notify us of each of the following, as soon as practicable:
 - a. a **Claim, Protective Claim** or **Pollution Protective Claim**;
 - b. **Bodily Injury** or **Property Damage** that may result in a **Claim, Protective Claim** or **Pollution Protective Claim**;
 - c. an act, error or omission in **Professional Services** that may result in a **Claim, Rectification Expense** or **Protective Claim**;
 - d. a **Pollution Condition**; and
 - e. **Remediation Expense**.
2. You must forward to us or to any of our authorized agents all demands, notices, summonses, legal papers or orders received by you or your representative as soon as practicable.
3. You must provide to us, whether orally or in writing, notice of the particulars including the time, place and circumstances thereof, of the **Claim**, act, error or omission in **Professional Services** or **Design Professional Services, Protective Claim, Pollution Condition, Pollution Protective Claim, Bodily Injury, Property Damage** or **Remediation Expense**, along with the names and addresses of any injured persons and witnesses. In the event of oral notice, you must furnish to us a written notice of the above of such particulars as soon as practicable.

Notice, whether orally or in writing, must be provided to us when a **Protective Claim** or **Pollution Protective Claim** is initiated.
4. You must cooperate with us and upon our request submit to examination under oath by a representative of us, if required, and attend hearings, depositions and trials and assist in effecting settlement, securing and giving evidence, obtaining the attendance of witnesses and otherwise cooperate in the investigation or defense of the **Claim**, and the maintenance and pursuit of, and recovery of monies in connection with the **Protective Claim** and **Pollution Protective Claim**. You must further cooperate with us and do whatever is necessary to secure and affect any rights of indemnity, contribution, apportionment or subrogation that you or we may have.

B. Prior Consent Required

As a condition precedent to the coverage hereunder:

No costs, charges or expenses, within the Self-Insured Retention Amount or otherwise, shall be incurred, nor payments made, obligations assumed or remediation commenced or undertaken without our prior written consent which, shall not be unreasonably withheld.

This provision does not apply to SECTION I - INSURING AGREEMENTS, B.3. Emergency Remediation Expense Coverage.

C. Defense

We have the right and the duty to defend, including the right to select counsel for, any **Claim** against you seeking **Professional Loss** or **Pollution Loss** to which, this insurance applies, even if any of the allegations are groundless, false or fraudulent. However, we have no duty to defend any **Claim** against you to which, this insurance does not apply. If we exercise such right set forth above, you must promptly reimburse us for any payments made by us within the Self-Insured Retention Amount, if any. We shall have the right, but not the duty, to defend an **Insured** against any **Claim** seeking damages for **Professional Loss** or **Pollution Loss** that is within the Self-Insured Retention Amount.

D. Consent to Settle

As a condition precedent to the coverage hereunder:

You shall not admit liability with respect to, or settle, any **Claim**, **Protective Claim** or **Pollution Protective Claim** without our prior written consent.

If we recommend a monetary settlement of a **Claim**:

1. for an amount within the Self-Insured Retention Amount, and you refuse to settle for such recommended amount, we shall not be liable for any **Professional Loss**, **Rectification Expense** or **Pollution Loss**, in excess of the Self-Insured Retention Amount; or
2. for a total amount in excess of the Self-Insured Retention Amount, and you refuse to settle for such recommended amount, our liability for **Professional Loss**, **Rectification Expense** or **Pollution Loss** or for any amount, for which, coverage is or may be applicable, shall be limited to such recommended amount plus the **Legal Expense** incurred as of the date we recommended such settlement amount that exceeds the Self-Insured Retention Amount, but falls within the Limits of Liability.

E. Circumstance Reporting

If during the **Policy Period**, the **Named Insured** first becomes aware of an actual or alleged negligent act, error or omission in **Professional Services** or a **Pollution Condition**, that the **Named Insured** reasonably believes may result in a **Claim** (hereafter referred to as a "Circumstance") that this Policy may apply, the **Named Insured** may provide written notice, of the actual or alleged negligent act, error omission in **Professional Services** or the **Pollution Condition**, to us during the **Policy Period**.

Any such Circumstance that subsequently becomes a **Claim** made against the **Named Insured** and reported to us, in writing, shall be considered to have been first made and reported during the **Policy Period** and shall be subject to all of the terms and conditions of this Policy.

As a condition precedent to the rights afforded to the **Named Insured** under this Subsection E., such written notice to us of a Circumstance shall contain all of the following information:

1. the date and details of all actual and alleged negligent acts, errors or omissions in **Professional Services** that took place, along with the specific nature, date and extent of any injury or damage that has been sustained;
2. the date and details of the **Pollution Condition** and the **Contracting Services** that may have caused such condition;
3. copies of any agreements that have been entered into by the **Named Insured** that are related to the **Professional Services** or **Contracting Services**; and
4. details explaining how the **Named Insured** first became aware of the Circumstance.

We shall determine, in our sole discretion, whether the **Named Insured's** written notice satisfies the condition precedent above.

SECTION VIII - CONDITIONS

A. Action Against Company

No action shall lie against us unless, as a condition precedent thereto:

1. you have fully complied with all of the terms of this Policy; and
2. the amount you are obligated to pay has been finally determined either by judgment against you after actual trial or by your written agreement, the claimant and us.

Any person or entity that has secured such judgment or entered into such written agreement shall thereafter be entitled to recover under this Policy to the extent of the insurance afforded by this Policy. No person or entity shall have any right under this Policy to join us as a party to any action against you to determine your liability, nor shall we be brought into such action by you or your legal representative.

B. Assignment

This Policy cannot be assigned without our prior written consent. Such consent shall not be unreasonably withheld or delayed.

C. Bankruptcy or Insolvency

Your bankruptcy or insolvency, or of your estate, shall not relieve us of any of our obligations under this Policy.

D. Cancellation

The following with regards to cancellation apply to this Policy:

1. Cancellation by the **First Named Insured**:

This Policy may be cancelled by the **First Named Insured** by mailing to us written notice stating when thereafter the cancellation shall be effective. The mailing of such notice must be sent certified mail, return receipt requested or by electronic mail. The effective date and time of cancellation stated in the written notice shall become the end of the **Policy Period**.

The Minimum Earned Premium for this Policy shall be the percentage stated in Item (7) of the Declarations of the total premium for this Policy. This means that such percentage of the total premium is fully earned by us on the inception of the **Policy Period**. The **First Named Insured** is not entitled to any return of the Minimum Earned Premium upon cancellation.

If the Minimum Earned Premium is less than one hundred percent (100%) of the total premium for this Policy, and the **First Named Insured** cancels this Policy, then the amount of premium returnable after the minimum premium earned is retained by us shall be computed in accordance with the customary short-rate table and procedure.

2. Cancellation by Us:

This Policy may be cancelled by us by mailing to **the First Named Insured** at the address shown in Item (1) of the Declarations, written notice stating when not less than ninety (90) days thereafter [or fifteen (15) days for non-payment of premium] such cancellation shall be effective. The mailing of such notice shall be sufficient proof of notice of cancellation. The effective date and time of cancellation stated in the written notice shall become the end of the **Policy Period**.

We may cancel this Policy at any time, but only for the following reasons:

- a. you made a material misrepresentation that affects our assessment of the risks insured by this Policy;
- b. you breached or failed to comply with Policy terms, conditions, contractual duties or any of your obligations under this Policy or at law; or
- c. you failed to pay the premium or the Self-Insured Retention Amount.

If we cancel this Policy for reasons set forth in Subsections 2.a. or 2.b. above, then the amount of premium returnable to the **First Named Insured** is computed on a pro-rata basis. If we cancel the Policy for reasons set forth in Subsection 2.c. above, there shall be no return premium.

In the event of cancellation by us from any ground referred to in Subsection 2.b. above, you shall have ninety (90) days from the date of notice of cancellation to remedy each breach and each failure that is a ground for cancellation, but only as to each and every breach and failure that are capable of being remedied. If your remedial efforts are completed within such ninety (90) day period and are satisfactory to us, we shall rescind the Notice of Cancellation with a written confirmation to the **First Named Insured**.

3. The following provisions also apply to Subsections D.1. and D.2. above:

- a. The premium adjustment shall occur as soon as practicable after cancellation becomes effective however, payment of unearned premium is not a condition of our cancellation.
- b. If a **Claim** for **Professional Loss** or **Pollution Loss** is made against you, a **Pollution Condition** is discovered, a **Protective Claim** or **Protective Pollution Claim** is made by you against a **Design Professional** or **Subcontractor**, or coverage is otherwise requested from us by you, during the **Policy Period**, within ninety (90) days of the end of the **Policy Period**, or the Optional Extended Reporting Period, then the premium shall be considered one hundred percent (100%) earned, and the **First Named Insured** is not entitled to any return of premium upon cancellation.
- c. If this Policy is terminated for fraud, misrepresentation or non-payment of premium, the ninety (90) days of additional reporting will not apply.

E. Changes

Notice to any agent or knowledge possessed by any agent or by any other person shall not affect a waiver or a change in any part of this Policy or estop us from asserting any right under the terms of this Policy. The terms and conditions of this Policy cannot be waived or changed, except by endorsement issued by us to form a part of this Policy.

F. Choice of Law and Jurisdiction and Venue

All matters arising from or related to this Policy, including without limitation questions related to the validity, interpretation, performance, and enforcement of this Policy, and all forms of contractual, tort and statutory claims shall be determined in accordance with the law and practice of the State of New York (notwithstanding New York's conflicts of law rules).

It is agreed that, in the event of any dispute arising from or related to this Policy, including without limitation questions related to the validity, interpretation, performance, and enforcement of this Policy, and all forms of contractual, tort and statutory claims, we and the **Insured** will submit to the jurisdiction of any court (state or federal) in New York and will comply with all the requirements necessary to give such court jurisdiction. Nothing in this clause constitutes or should be understood to constitute a waiver of the right of us or the

Insured to remove an action to the United States District Court, regardless of the jurisdiction in which, an action is commenced.

G. Declarations and Representations

By acceptance of this Policy, you agree that the statements, declarations and information contained in the Application, submitted for this Policy and executed by you, and any other supplemental materials submitted to us are:

1. true, correct and complete;
2. such statements and information are material to our underwriting of this Policy;
3. that this Policy has been issued by us in reliance upon the truth, correctness and completeness of such statements, declarations and information, and
4. the Application, submitted for this Policy and executed by you, and any other supplemental materials submitted to us are incorporated in and made part of this Policy.

H. Design Professional's Insurance

You shall require that each **Design Professional**, with whom you enter into a written agreement, carry professional liability insurance.

I. Headings

The descriptions in the headings of this Policy are solely for convenience and form no part of the terms and conditions of this Policy.

J. Inspection and Audit

We shall be permitted, but not obligated, to examine, audit, monitor and inspect on a continuing basis any of your books, records, services, properties and activities at any time, as far as they relate to the subject matter of this Policy.

Neither our right to examine, audit, monitor and make inspections, or the actual undertaking thereof, or any report thereon, neither constitutes an undertaking to determine or warrant that property or operations are safe, healthful, or conform to acceptable engineering practice, or are in compliance with any law, rule or regulation. Any inspections shall be coordinated through the broker or agent of the **First Named Insured**.

K. Other Insurance

Unless expressly stated to the contrary, this Policy is excess over the Self-Insured Retention Amount and any other valid and collectible insurance whether such other insurance is stated to be primary, contributory, excess, contingent or otherwise, unless such other insurance is written specifically excess of this Policy by reference in such other policy to this Policy Number in this Policy's Declarations. When any other insurance has a duty to defend a **Claim**, we shall have no duty to defend the **Claim**; if the other insurance does not defend the **Claim**, we shall have the right, but not the duty to defend the **Claim**.

With regard to SECTION I - INSURING AGREEMENTS, B. Pollution Coverages, when you are required by written agreement, executed prior to the first commencement of the **Pollution Condition**, to include any person or entity as an additional **Insured**, such coverage shall be provided on a primary and non-contributory basis to the extent required by the written agreement.

L. Severability

Except with respect to the Limits of Liability and the Self-Insured Retention Amount, and any rights or duties specifically assigned in this Policy to the **First Named Insured**, this insurance applies:

1. as if each **Named Insured** were the only **Named Insured**; and
2. separately to each **Insured** against whom a **Claim** is made.

M. Sole Agent

The **First Named Insured** shall act on behalf of all **Insureds** for the payment or return of premium, receipt and acceptance of any endorsement issued to form a part of this Policy, giving and receiving notice of cancellation or non-renewal and the exercise of the rights provided in SECTION VI – OPTIONAL EXTENDED REPORTING PERIOD.

N. Subrogation

In the event of any payment under this Policy, we shall be subrogated to all of your rights of recovery against any person or entity and you will execute and deliver instruments and papers and do whatever else is necessary to secure such rights. We shall have priority in any recovery, and any amounts recovered in excess of our total payment and the cost of recovery shall be paid to you. You shall do nothing at any time to prejudice our subrogation rights.

However, we waive our right of recovery against any person or entity, except for a **Design Professional** or **Subcontractor**, including **Subcontractors** and subconsultants, if and to the extent you agreed to waive your right of recovery against such person or entity in a written agreement signed by you prior to:

1. the negligent act, error or omission in **Professional Services** out of which the **Claim** or request for **Rectification Expense** arises under SECTION I - INSURING AGREEMENTS, A. Professional Coverages; or
2. the first commencement of a **Pollution Condition** out of which the **Claim** or request for **Emergency Remediation Expense** or **Pollution Loss** arises under SECTION I - INSURING AGREEMENTS, B. Pollution Coverages.

O. Territory

This Policy applies to **Professional Services** and **Contracting Services** rendered worldwide, provided that the **Claim**, **Protective Claim** or **Pollution Protective Claim** is first brought, and at all times maintained, within the United States of America (including its territories and possessions), and Canada.

This Policy does not apply to any **Claim**, **Protective Claim** or **Pollution Protective Claim** for which, payment would be in violation of the laws of the United States of America including, but not limited to, United States economic or trade sanction laws or export control laws administered by the United States Treasury, State, and Commerce Departments, for example the economic and trade sanctions administered by the United States Treasury Office of Foreign Assets Control.

ADVANCE NOTICE OF CANCELLATION OR NON-RENEWAL BY US EXTENDED

This endorsement changes the policy to which it is attached effective on the inception date of the policy unless a different date is indicated below.

(The following "attaching clause" need be completed only when this endorsement is issued subsequent to preparation of the policy).

This endorsement, effective 12:01 AM **05/01/2025** forms a part of Policy No. WC 015-85-3378

Issued to **GEN3 CONSTRUCTION LLC**

By **NEW HAMPSHIRE INSURANCE COMPANY**

THIS ENDORSEMENT CHANGES THE POLICY. PLEASE READ IT CAREFULLY.

This endorsement modifies insurance provided under the following:

WORKERS COMPENSATION AND EMPLOYERS LIABILITY INSURANCE POLICY

PART SIX - CONDITIONS. D. - Cancellation, 2. is deleted in its entirety and replaced with:

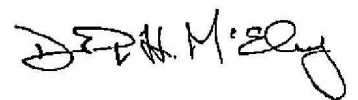
We may cancel or non-renew this policy. We must mail or deliver to you not less than the number of days shown below advance written notice stating when the cancellation or non-renewal is to take effect.

Except for non-payment of premium, non-payment of loss reimbursement or non-delivery of satisfactory security or collateral when due for which we will provide the advance written notice required by law, we shall not provide less than the number of days advance notice set forth below, or in the policy and endorsements attached thereto, or as required by state law.

Mailing that notice to you, at your mailing address shown in Item 1 of the Information Page will be sufficient to prove notice.

Cancellation: 60 Days

Non-Renewal: 60 Days



WAIVER OF OUR RIGHT TO RECOVER FROM OTHERS ENDORSEMENT

This endorsement changes the policy to which it is attached effective on inception date of the policy unless a different date is indicated below.

This endorsement, effective 12:01 AM **05/01/2025** forms a part of Policy No. **WC 015-85-3378**

Issued to **GEN3 CONSTRUCTION LLC**

By **NEW HAMPSHIRE INSURANCE COMPANY**

We have the right to recover our payments from anyone liable for an injury covered by this policy. We will not enforce our right against the person or organization named in the Schedule. This agreement applies only to the extent that you perform work under a written contract that requires you to obtain this agreement from us.

This agreement shall not operate directly or indirectly to benefit any one not named in the Schedule.

Schedule

ANY PERSON OR ORGANIZATION TO WHOM YOU BECOME
OBLIGATED TO WAIVE YOUR RIGHTS OF RECOVERY
AGAINST, UNDER ANY WRITTEN CONTRACT OR AGREEMENT
YOU ENTER INTO PRIOR TO THE OCCURRENCE OF LOSS.

CONTINUED NEXT PAGE

This form is not applicable in Kansas for private construction contracts as defined in K.S.A. 16-1801 through K.S.A. 16-1807 or public construction contracts as defined in K.S.A. 16-1901 through 16-1908, except where permitted by statute or other applicable law, such as for use in wrap-up insurance programs.

Any person or organization for which the employer has agreed by written contract, executed prior to loss, may execute a waiver of subrogation. However, for purposes of work performed by the employer in Missouri, this waiver of subrogation does not apply to any construction group of classifications as designated by the waiver of right to recover from others (subrogation) rule in our manual.

This form is not applicable in California, Kentucky, New Hampshire, New Jersey, Texas, or Utah.

